

TransRidge Pipeline LLC v. Cascade Headwaters Alliance

Pipeline protest discovery · First Amendment associational privilege

PLATFORM	DOCUMENTS	DATE RANGE
Casepoint	500 · 294 emails, 53 memos, 153 files	September 1, 2024 – June 28, 2025

Training matter. The parties, events and documents are fictional and exist for AA Team review practice.

1 Matter overview

TransRidge Pipeline LLC has sued Cascade Headwaters Alliance, an advocacy group that organised protests against its pipeline, and served discovery requests seeking the Alliance's members and donors, its protest strategy, and evidence of trespass and property damage. We represent the Alliance.

The First Amendment protects the freedom to associate, and forcing a group to name its members or donors can chill it (NAACP v. Alabama). That protection is qualified: a court weighs it against TransRidge's need for the material. Reviewers do not make that call. You flag it.

2 Parties and custodians

ROLE	NAME
Executive Director	Maya Reyes
Organizing Director	Ben Calloway
Development Director	Priya Nair
Volunteer Coordinator	Sam Otieno
Operations Manager	Dana Whitfield

3 Coding fields on Casepoint

These are the values the coding panel offers. Every document gets all five fields, and all five are graded.

FIELD	VALUES
Responsiveness	Responsive · Not Responsive · Technical Issue
Privilege	Not Privileged · Privileged (A-C) · First Am. — Flag & Escalate
Issues	Select every issue that applies
Production	Produce · Withhold · Redact
Confidentiality	Confidential · Highly Conf. – AEO

4 How to code

IF THE DOCUMENT IS...	RESPONSIVENESS	PRIVILEGE	PRODUCTION	CONFIDENTIALITY
A file that failed processing and cannot be read	Technical Issue	Not Privileged	Withhold	Confidential
Not responsive to any request	Not Responsive	Not Privileged	Withhold	Confidential
Responsive and privileged throughout	Responsive	Privileged (A-C)	Withhold	Usually Highly Conf. – AEO
Responsive, and identifies members or donors, or reveals internal organizing and advocacy strategy	Responsive	First Am. — Flag & Escalate	Withhold	Highly Conf. – AEO
Responsive, not privileged, but contains protected personal or sensitive information (see 9)	Responsive	Not Privileged	Redact	By content (see 8)
Responsive, and none of the above	Responsive	Not Privileged	Produce	Confidential or Highly Conf. – AEO

- On Casepoint the Production field means "does this go out". A document that is not responsive, or cannot be read, is withheld. This is not how Relativity and Everlaw work; do not carry the habit across.
- Technical Issue: if a file failed processing, code it Technical Issue, withhold it and route it for re-collection. Never guess substantive coding for a document you cannot read.
- Issues go on responsive documents only. Hot Doc is tagged alongside the substantive issues, never instead of them.

5 Issue tags

#	ISSUE	DEFINITION	WHAT TO LOOK FOR
1	Membership & Donors	Who the Alliance's members, donors and volunteers are.	Membership rosters, donor lists, contribution records, anything naming an individual rank-and-file member.
2	Protest Strategy	How the Alliance plans and runs its campaign.	Organizing plans, targets, tactics, volunteer assignments, messaging.
3	Trespass / Property Damage	Events at pipeline sites.	Alleged trespass or damage, who was present, what happened.
4	Hot Doc	Documents of particular significance to TransRidge's claims.	Tag alongside the substantive issues.

6 Attorney and law-firm screen

A name on this list does not make a document privileged. It tells you to read closely for legal advice.

NAME	ROLE	FIRM / DOMAIN
Rivera Stone	Outside counsel to the Alliance	riverastone.com

7 Privilege

- Two different protections apply, and the panel keeps them apart. Privileged (A-C) is ordinary attorney-client privilege: legal advice from Rivera Stone.
- First Am. — Flag & Escalate is for the associational privilege: documents that identify members or donors, or reveal internal organizing and advocacy strategy. Withhold them and designate Highly Conf. – AEO.

- Never assume the First Amendment privilege applies, and never assume it does not. Flag it and let it be decided.
- Outside counsel's advice to the Alliance about how to conduct this review is privileged but not itself responsive to TransRidge's requests: code it Not Responsive and Privileged (A-C), withhold it, and designate Highly Conf. – AEO.
- Content controls responsiveness, not the mailbox. A personal message sent from a work account is not responsive.

8 Confidentiality

DESIGNATION	USE IT FOR
Highly Conf. – AEO	Competitively or commercially sensitive material, and most privileged documents.
Confidential	Everything else, including every Not Responsive and Technical Issue document, and ordinary business logistics.

The call turns on content, not on who sent the document.

9 Redaction

- Redaction is rare in this matter. Material the First Amendment may protect is flagged and withheld whole rather than redacted.

10 Matter alerts

Qualified privilege: flag, don't assume

The associational privilege is qualified, not absolute. Your job is to recognise material it may cover and flag it, not to decide the balance. When a document names individual members or donors, or lays out internal strategy, code First Am. — Flag & Escalate and withhold.

11 Escalation and the QC standard

STEP	WHO	WHEN
1	Glory or Junior	Your first go-to for every question.
2	Zabron or Simon	If Glory and Junior are unavailable or need backup.
3	Aaron	If it is still unclear after steps 1 and 2.
4	PM / RM	If Aaron has no clear answer, or the question is client-level.

- Never guess silently on a gray area. While you wait for an answer, protect the document: treat it as privileged and do not release it.
- Ask a good question: the document ID; short context (who is writing to whom, about what); your lean and why; and what makes it difficult.

QC TRACK STANDARD	
Accuracy	Measured as defects per 1,000 documents. The target is zero. One defect per thousand still scores 95.
Pace	60 documents per hour, sustained, done properly.
Responsiveness	Reply to supervisor messages within 2 minutes while on shift.
The rule that outranks the others	Never trade privilege accuracy for speed.